

Bablu @ Ramakant v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 8 August 2018 · WRIT - C No. - 25745 of 2018 · **Writ disposed; petitioner relegated to Clause 6.5 for the bill dispute.**

HEADNOTE

A writ petition that only disputes the correctness of an electricity bill, raising disputed questions of fact, is not entertainable. The consumer must take the statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If he approaches the appropriate authority, the application is to be considered in accordance with law.

FACTUAL SUMMARY

The petitioner, Bablu alias Ramakant, filed a writ petition against U.P. Power Corporation Ltd. and three others, disputing the correctness of an electricity bill raised against him. On 30 July 2018 the respondents were granted three days to seek instructions. On 8 August 2018 the Court heard counsel for the petitioner and the Electricity Department and perused the record. The order states no particulars of the billing period, consumption, or meter.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-statutory-remedy

HOLDING

A writ raising only the correctness of an electricity bill, being a disputed question of fact, will not be entertained; the consumer is left to Clause 6.5 of the U.P. Electricity Supply Code, 2005, and any application to the appropriate authority is to be considered in accordance with law. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL ON MERITS

Left to the Clause 6.5 statutory forum as a disputed question of fact. ¶ 2